

TENTATIVE RULING

Helen Albano, et al.
v.
County of Monterey, et al.
24CV004107

Defendant's Motion for Summary Judgment or, Alternatively, Summary Adjudication

Hearing Date: July 10, 2026

Defendant County of Monterey/Natividad Medical Center ("Natividad") moves for summary judgment or, alternatively, summary adjudication, as to each cause of action brought by Plaintiffs Tami Grant, Jaqueline Siino, Eric Garcia, and Kristen Pierce (collectively, "Plaintiffs").

Plaintiffs bring the First, Second, and Third Causes of Action in the Complaint. Natividad's motion for summary adjudication on the First and Third Causes of Action is **GRANTED**, as Plaintiffs agree these claims should be dismissed. [Opp. at 7:18-20.]

Ms. Grant brings the Complaint's Fourth, Fifth, and Sixth Causes of Action. Natividad's motion for summary adjudication of the Fourth and Fifth Causes of Action is **GRANTED** because Ms. Grant concedes that those claims should be dismissed. [Opp. at 7:18-20.]

Regarding the Plaintiffs' Second Cause of Action for Religious Discrimination and Ms. Grant's Sixth Cause of Action for Disability Discrimination, Natividad has satisfied its burden of proving that it is immune from suit under Government Code Section 855.4 ("Section 855.4") and that liability under California's Fair Employment and Housing Act ("FEHA") does not waive this immunity. Plaintiffs have not demonstrated that triable factual issues exist concerning Natividad's immunity. Therefore, Natividad's summary-adjudication motion about Plaintiffs' Second Cause of Action and Ms. Grant's Sixth Cause of Action is **GRANTED**.¹

Even in the absence of Section 855.4 immunity, Natividad's motion for summary adjudication of Ms. Grant's Sixth Cause of Action is **GRANTED** because she does not have, and cannot reasonably obtain, evidence showing that she has a FEHA-recognized physical disability or medical condition.

As a result of the summary-adjudication rulings, Natividad's motion for summary judgment as to each of the causes of action brought by Plaintiffs and Ms. Grant is **GRANTED**. The Court's ruling on the parties' evidentiary objections, which are **SUSTAINED IN PART AND OVERRULED IN PART**, is summarized below. Each party's request for judicial notice is **GRANTED IN PART AND DENIED IN PART**.

¹ If Section 855.4 immunity did not apply to the Second Cause of Action, the Court would have denied Natividad's Second Cause of Action because triable factual issues exist as to whether Plaintiffs had a sincerely held religious belief. [See Discussion at § 2.]

Procedural History and Undisputed Facts.

Natividad is part of the Monterey County Healthcare system, which is a public entity governed by Government Code section 811.2. [Natividad’s Undisputed Material Fact (“Natividad Fact(s)”) 3.] Natividad employed Plaintiffs. [Complaint, filed 9/30/24, at ¶¶ 7, 9, 15, and 17; Plaintiffs’ Undisputed Material Fact (“Plaintiffs’ Fact(s)”) 1.]

On September 30, 2024, Plaintiffs filed their Complaint against Natividad. In their Second Cause of Action, Plaintiffs assert that Natividad failed to accommodate their religion-based request for an exemption from the mandatory COVID-19 vaccination order. [Natividad Fact 1.] In her Sixth Cause of Action, Ms. Grant claims that Natividad “failed to provide reasonable alternative means of accommodating [her] medical condition/disability.” [Complaint, filed 9/30/24, at ¶ 120.]

With leave of Court, Natividad filed its Amended Answer and included Section 855.4 immunity as its 33rd Affirmative Defense against all claims asserted against it. [Answer, filed 10/17/25, at 8:20-22.]

Legal Standard.

Summary judgment or adjudication is warranted where there are no triable issues of material fact, and the moving party is entitled to judgment as a matter of law. [Code Civ. Proc. § 437c, subds. (c), (f); see *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.]

Courts follow a three-step process when reviewing a motion for summary judgment or adjudication: (1) identify the issues outlined by the pleadings; (2) evaluate whether the moving party has disproved the opponent’s claims; and (3) assess if the opposition has shown there is a triable factual issue. [*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.]

A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” [Code Civ. Proc. § 437c, subd. (f)(2).] The initial burden always rests on the moving party to make a prima facie showing that no material factual issues are in dispute. [*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453.] When a defendant files for summary judgment or adjudication, they satisfy their initial burden if they prove that at least one element of the cause of action cannot be established or that a complete defense exists. [Code Civ. Proc. § 437c, subd. (p)(2).] Failure to meet this burden results in denial of the motion, ending the inquiry. [*Id.*]

To meet the burden of proving that a cause of action cannot be established, a defendant must demonstrate that the plaintiff does not possess, and cannot reasonably obtain, the needed evidence. [*Aguilar*, 25 Cal.4th at 854.] Merely pointing out the lack of evidence is not enough. [*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.] This supporting evidence may include affidavits, declarations, admissions, depositions, answers to interrogatories, and matters subject to judicial notice. [*Aguilar*, 25 Cal.4th at 855.]

Even if the moving defendant meets its burden, the opposing plaintiff can still defeat a summary judgment or summary adjudication motion by presenting evidence that raises a triable issue of fact. [*Aguilar*, 25 Cal. 4th at 849-850.] The plaintiff cannot rely solely on allegations or denials in its pleadings; instead, it must present specific facts indicating the existence of a triable issue of material fact concerning the cause of action. [Code Civ. Proc. § 437c, subd. (p)(2); *Choochagi*, 60 Cal.App.5th at 453.] If the plaintiff fails to do so, summary judgment or summary adjudication should be granted. [*See Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.]

The court must liberally construe the evidence presented by the party opposing summary judgment or adjudication, resolving all doubts and making all reasonable inferences in favor of that party. [*Aguilar*, 25 Cal.4th at 844-845.] When reviewing such a motion, the court must consider what inferences a factfinder could reasonably draw that favor the opposing party. [*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.] The main role of the court is to identify issues, not to decide them; only clear and indisputable inferences can lead to a legal resolution. [*Ibid.*] If evidence conflicts, factual disputes must be resolved during trial. [*Ibid.*] Furthermore, the trial court cannot weigh evidence as a factfinder would to determine credibility, nor can it grant summary judgment based on credibility assessments. [*Id.* at 840.]

Request for Judicial Notice (“RJN”).

Natividad’s first request to judicially notice the Supreme Court’s Order Regarding Depublication of *Allos v. Poway Unified School Dist.*, No. S292190 [Exh. A], and the Order Granting Summary Judgment in *Broadstreet v. Salinas Valley Memorial Healthcare System*, Monterey County Superior Court, Case No. 24CV004109 [Exh. B], is **GRANTED**. [Evid Code § 452, subd. (d).]

Plaintiffs’ request to judicially notice the California Department of Public Health (“CDPH”) Order, dated July 26, 2021 [Exh. 1], CDPH Order, dated August 5, 2021 [Exh. 2], and Law Revision Commission memorandum [Exh. 4]² is **GRANTED**. [Evid. Code § 452, subd. (c).] The Court also takes judicial notice that the Bible is a well-known religious document that sets forth fundamental doctrinal principles and beliefs of Christianity. [Plaintiffs’ RJN No. 3; Evid. Code § 452, subd. (h).] Plaintiffs’ remaining requests are **DENIED**. The Court **denies** their request to take judicial notice of the truth of the interviews’ content. [Plaintiffs’ Nos. 4-5; Evid. Code § 452, subds. (g)-(h); *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.] The Court also **denies** their request to take judicial notice of the list of statements outlined in Item No. 6 of Plaintiffs’ RJN. [Evid. Code § 452, subds. (g)-(h).]

Natividad’s second request to judicially notice this Court’s summary-judgment order in this case involving different plaintiffs, filed on May 12, 2026, and the related hearing transcript is **GRANTED**. [Evid. Code § 452, subd. (d).]

² Although identified as Exhibit 4, the cover page of the Law Revision Commission memorandum identifies this document as Exhibit 20.

Evidentiary Objections.

The Court rules on each party's evidentiary objections as follows:

PLAINTIFFS' OBJECTIONS		
No(s).	Cite	Ruling
Carrie Ramirez Declaration		
1-7	¶¶ 3-4 and 6-10	OVERRULED.
8	¶ 11	SUSTAINED as to the last two sentences only as lacking foundation and inadmissible hearsay.
9-12	¶¶ 12-15	OVERRULED.
Chrissy Garza Declaration		
13	¶ 3.	SUSTAINED. Lacks foundation.
14-36	¶¶ 4-9, 12-17, 19-27	OVERRULED.
Geoffrey Spellberg Declaration		
37-38	¶¶ 3-4	OVERRULED.
Dr. Charles R. Harris Declaration		
43-61	¶¶ 2, 4, 5, and 7-22	OVERRULED.
62	¶ 23	SUSTAINED because it is a legal conclusion as to "undue harm."
63	¶ 24	OVERRULED.
64	¶ 25	SUSTAINED because it is a legal conclusion as to "undue hardship."
Dr. Arthur L. Reingold Declaration		
65-73	¶¶ 5-13	OVERRULED.
Janine Bouyea Declaration		
74-75	¶¶ 3, 9	OVERRULED.
76-78 80-83	¶¶ 11, 13-14, and 16-19	SUSTAINED.
79	¶ 15	SUSTAINED because it is a legal conclusion as to "reasonableness" accommodation.

NATIVIDAD'S OBJECTIONS		
No(s).	Cite	Ruling
1	Plaintiffs' Compendium of Evidence ("CE") Exhs. 10-11, 13-19	SUSTAINED. Irrelevant.
2	CE Exh. 22	Provisionally OVERRULED on condition that Plaintiffs file an amended declaration

NATIVIDAD'S OBJECTIONS		
No(s).	Cite	Ruling
		attaching a copy of the certified transcript of Dr. Carrie Ramirez's deposition.
3	Plaintiffs' RJN ¶ 3	OVERRULED.
4	Plaintiffs' RJN ¶ 4	SUSTAINED on the grounds asserted.
5	Plaintiffs' RJN ¶ 5	SUSTAINED on the grounds asserted.
6	Plaintiffs' RJN ¶ 6	SUSTAINED on the grounds asserted.
7	Plaintiffs' RJN ¶ 7	OVERRULED.
8	[Nothing identified]	N/A

Discussion.

1. Section 855.4 Immunity.

Generally, the Government Claims Act (the "Act") "affords a public employee personal immunity from suit when the act or omission for which recovery is sought resulted from the exercise of the discretion vested in him." [*Caldwell v. Montoya* (1995) 10 Cal.4th 972, 976 (citing Gov. Code § 820.2; internal quotes omitted).] "This 'discretionary act' immunity extends to 'basic' governmental policy decisions entrusted to broad official judgment." [*Ibid.*] The Act's "purpose is assuring judicial abstention in areas in which the responsibility for basic policy decisions has been committed to coordinate branches of government, because any wider judicial review would place the court in the unseemly position of determining the propriety of decisions expressly entrusted to a coordinate branch of government." [*Allos v. Poway Unified School Dist.* (2025) 112 Cal.App.5th 822, 833 (internal quotes, brackets, and ellipses omitted).]

Section 855.4 is part of the Act. Subdivision (a) grants immunity for discretionary decisions made "to promote the public health of the community by preventing disease or controlling the communication of disease." Subdivision (b) separately grants immunity for acts carried out "with due care" in implementing these decisions. Immunity applies to both tort and FEHA claims when injuries result from a qualifying disease-control decision. [*Allos v. Poway Unified School Dist.* (2025) 112 Cal.App.5th 822.] "Neither the statutory language nor case law interpreting it suggests a defendant must qualify for immunity under both section 855.4 subdivision (a) and section 855.4 subdivision (b) in order to be immune." [*Greenwood v. City of Los Angeles* (2023) 89 Cal.App.5th 851, 865.]

a. Natividad Met Its Summary-Judgment Burden.

It is undisputed that Natividad is a public entity and therefore falls within the category of entities that Section 855.4 aims to protect. [Natividad Fact 3.] Consequently, in seeking summary judgment based on the affirmative defense of Section 855.4 immunity, Natividad must show that there is no genuine issue of material fact, because any injury resulting from its failure to accommodate Plaintiffs' religious beliefs or Ms. Grant's disability was due to a discretionary decision made to promote public health during the COVID-19 pandemic. [*Aguilar*, 25 Cal.4th at 850; Gov. Code § 855.4.]

Natividad argues that *Allos* is controlling and confirms that Section 855.4 shields it from Plaintiffs' Second Cause of Action and Ms. Grant's Sixth Cause of Action under FEHA. In that case, the plaintiff was a school district employee who filed claims after the district refused to let her work solely from home following the COVID-19 stay-at-home order. [*Allos*, 112 Cal.App.5th at 826-827, 829-830.] She wanted to work remotely full-time because of several health issues that made her more vulnerable to COVID-19. [*Id.* at 827-829.] The plaintiff claimed she could not get vaccinated due to a "prior serious reaction/allergy" to the vaccine, which she described as a disability the school district had a duty to accommodate. [*Id.* at 828, 831.] Plaintiff argued that the district's accommodations were inadequate. [*Id.* at 829.] The trial court granted, and the appellate court upheld, summary judgment in favor of the district because the plaintiff's "claims were barred by section 855.4." [*Id.* at 831-832, 834-836.] *Allos* reasoned that Section 855.4 prevents the plaintiff's claims because they are based on the school district's decisions about remote work and returning to the office. [*Ibid.*] Furthermore, the appellate court concluded that the plaintiff did not clearly prove she had a disability, which weakened her FEHA disability discrimination and failure-to-accommodate claims. [*Id.* at 837.]

Allos confirms that Section 855.4 immunity applies here. Like the plaintiff in *Allos*, Plaintiffs seek to hold Natividad responsible for harm caused by its decision to require them to be vaccinated. After a thorough review of relevant factors, including medical literature and studies, Natividad implemented a vaccine mandate requiring all employees to be vaccinated. [Natividad Fact 7.] The decision to enforce the vaccine requirement and to prohibit non-vaccinated employees from working at Natividad was made to promote public health by preventing disease and limiting its spread within the community. [Natividad Fact 8.] Natividad created an exemption process that allowed employees to apply for religious and/or medical exemptions from the vaccine requirement. [Natividad Fact 9.] All employees granted an exemption were placed on leave, and Natividad sought alternative employment for those individuals within the County. [Natividad Fact 10.] Natividad's actions to enforce the vaccine mandate, place exempt employees on leave, and restrict their ability to work in the hospital were taken to support public health by preventing COVID-19 and controlling its transmission within the community. [Natividad Fact 13.] When placing Plaintiffs on leave, Natividad acted with due care to protect its patients, staff, and the Monterey community from COVID-19. [Natividad Fact 14.] Therefore, Natividad's decision not to accommodate Plaintiffs due to its vaccine mandate stems from its efforts to safeguard public health. As a result, Section 855.4 applies to Plaintiffs' FEHA claims.

Natividad has therefore met its initial burden by showing that there is no genuine issue of material fact, as any injury caused by its decision not to accommodate Plaintiffs' religious beliefs or Ms. Grant's disability was a result of a discretionary choice aimed at protecting public health during the COVID-19 pandemic. The burden now shifts to Plaintiffs to show that triable factual issues exist.

b. Plaintiffs Did Not Meet Their Summary-Judgment Burden.

Plaintiffs do not show that Section 855.4 immunity is a factual issue needing a trial. Therefore, Natividad's motion is **GRANTED**.

First, Plaintiffs argue that Natividad proposed an interpretation of Section 855.4 that is overly broad and would undermine FEHA. [Opp. at 23-25.] However, the court in *Allos* prioritized Section 855.4 immunity over FEHA. [*Allos*, 112 Cal.App.5th at 831-832, 834-836.] Additionally, and contrary to Plaintiffs' belief, *DeJung v. Superior Court* (2008) 169 Cal.App.4th 533 is inapplicable because the issue in that case was immunity under Government Code section 820.2. [*Id.* at 546-547.] Finally, since Section 855.4 was enacted 17 years before FEHA, the Legislature is presumed to have been aware of all pre-existing statutes and to have known about Section 855.4 immunity when enacting FEHA. [*Hohenshelt v. Superior Court* (2025) 18 Cal.4th 310.]

Second, Plaintiffs argue that *Allos* is distinguishable because their claims arose from subsequent employment decisions governed by FEHA, not from any qualifying decision under Section 855.4. The Court is not persuaded that Section 855.4 immunity does not apply to FEHA-related claims, including Plaintiffs' Second Cause of Action and Ms. Grant's Sixth Cause of Action. California law generally recognizes that "a statutory governmental immunity overrides a statute imposing liability," and that "absent a clear indication of legislative intent that statutory immunity is withheld or withdrawn, a specific statutory immunity applies to shield a public employee from liability imposed by a particular statute." [*Bitner v. Dept. of Corrections & Rehabilitation* (2023) 87 Cal.App.5th 1048, 1059 (internal quotes and ellipsis omitted).] A public entity, such as Natividad, is subject to any immunity provided by statute. [Gov. Code § 815, subd. (b).] FEHA's mandatory duty to accommodate religious beliefs does not override statutory immunity for discretionary acts. [*Esparza v. County of Los Angeles* (2014) 224 Cal.App.4th 452, 462 (FEHA did not abrogate Government Code section 818.2 immunity conferred by section 818.2); *Bitner*, 87 Cal.App.5th at 1063 ("[E]ven if we were to accept that FEHA creates a mandatory duty within the meaning of [Government Code] section 815.6, section 815 provides that the immunity provision of section 844.6 takes precedence over any liability imposed by section 815.6, and plaintiffs' argument to the contrary is without merit.")]. Thus, like other statutory immunities, and as recognized in *Allos*, 112 Cal.App.5th at 835, FEHA liability does not supersede Section 855.4 immunity. FEHA is an extensive statutory scheme designed to support a broad public policy of protecting against employment discrimination; thus, the later enactment of FEHA was not decisive.

Third, Plaintiffs argue that even if Section 855.4 could apply to a FEHA claim, Natividad has not demonstrated the existence of a qualifying discretionary decision. However, Dr. Harris testified that the Board of Supervisors' "directive was consistent with the decision that [he and] upper management made that unvaccinated workers were not going to be allowed to work at" Natividad. [Natividad Fact 7 (citing Dr. Harris Decl. at ¶¶ 12-13).] Dr. Harris also clarified how Natividad's vaccine mandate was established. [Natividad Facts 6-7.] Consequently, Natividad's decision was made independently of CDPH's mandate requiring healthcare workers to be vaccinated, while still providing for medical and religious exemptions. Plaintiffs cannot rely on the inadmissible excerpts from Ms. Bouyea's declaration to oppose summary judgment.

Fourth, Plaintiffs argue that Natividad cannot claim immunity under Section 855.4, subdivision (b), because there was no "due care." However, Natividad does not need to prove immunity under subdivision (b) since it already has immunity under subdivision (a).

Accordingly, Natividad's motion for summary judgment is **GRANTED** because it has satisfied its burden of demonstrating that Section 855.4 immunity supersedes the FEHA liability alleged in the Second and Sixth Causes of Action. Plaintiffs have not presented any material facts that would create triable issues of fact to the contrary.

2. Plaintiffs' Second Cause of Action for Religious Accommodation.

Assuming, for the sake of argument, that Section 855.4 immunity does not apply, Natividad has the initial burden of demonstrating that Plaintiffs lack sufficient evidence to support their Second Cause of Action for religious accommodation. The elements of that cause of action are (1) the employee sincerely held a bona fide religious belief, (2) the employer was aware of that belief, and (3) the belief conflicted with an employment requirement. [*Friedman v. Southern Cal. Permanente Medical Group* (2002) 102 Cal.App.4th 39, 45.]

Here, the parties presented conflicting evidence. On the one hand, Plaintiffs submit declarations elaborating on their religious beliefs. [Plaintiffs' Facts 19-21, 41-42.] On the other hand, Natividad asserts that each Plaintiff's deposition testimony contradicts their declarations. [Natividad Facts 43-46.] Religious sincerity is inherently fact-based and subjective. Thus, but for Section 855.4 immunity, the Court would have ruled that Plaintiffs raise triable factual issues regarding the sincerity of their religious beliefs and denied Natividad's motion for summary adjudication. However, because Section 855.4 bars the claim, the Court does not reach the remaining elements.

3. Ms. Grant's Sixth Cause of Action for Disability Accommodation.

Even without considering Section 855.4 immunity, Natividad's summary-adjudication motion on the Sixth Cause of Action is **GRANTED**. Natividad has demonstrated that Ms. Grant lacks evidence of an actionable disability under FEHA.

FEHA defines "medical condition" as either "[a]ny health impairment related to or associated with a diagnosis of cancer or a record or history of cancer" or a genetic characteristic. [Gov. Code § 12926, subd. (i); *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 584.] "Physical disability" under FEHA "includes, but is not limited to, all of the following: (1) Having any physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss that does both of the following: ..." [Gov. Code § 12926, subd. (m).] Unlike the definition of physical disability, there is no requirement that a medical condition limit a major life activity to be considered protected. [*Soria*, 5 Cal.App.5th at 584.]

Natividad's evidence shows that Ms. Grant admitted she does not have a FEHA-related medical condition or a physical disability. [Natividad's Facts 30-31, 53-56, 58-61.] Ms. Grant's concern that the vaccine could alter her DNA is not a recognized medical condition under FEHA. [Natividad's Facts 64-65.] Additionally, after recovering from her knee injury, Ms. Grant admits she did not have a physical disability that prevented her from returning to work. [Natividad's Facts 67-68.] Ms. Grant's attempt to create a triable issue regarding whether she has a FEHA-recognized "disability" through a doctor's note fails. She provides no authority that such evidence automatically qualifies her for FEHA "disability," regardless of its content.

Conclusion.

Natividad's motion is **GRANTED**, and Natividad is entitled to summary judgment of Plaintiffs' claim against it. As detailed above, the parties' evidentiary objections are **SUSTAINED IN PART AND OVERRULED IN PART**, and their request for judicial notice is **GRANTED IN PART AND DENIED IN PART**.

Natividad shall prepare the Proposed Order consistent with this Tentative Ruling.